



COURSEWORK SUBMISSION TEMPLATE

*Students: In preparing and submitting this assessment,
please ensure you adhere to the Coursework*

Student number: (for group work please include the numbers of all participating students)	3103914
Word count (including footnotes):	1499

Question(s)/Assignment to be answered (e.g. Essay title):

Your essay should discuss the following question:

Bringing links within the scope of the right of communication to the public provided for in art. 3 of the Information Society Directive fundamentally undermines the openness of the internet.

In your essay you should agree or disagree with the above statement, backing your position with references to the relevant authority.

*Students: your coursework submission should be inserted below, indicating question numbers
(where there are multiple elements):*

1. Introduction

Hyperlinking could be described as the connective tissue of the internet,¹ so extending copyright's communication right to links could seem threatening to online openness.² However, bringing some links within the Article 3 does not fundamentally undermines that openness. The CJEU has treated certain forms of linking and link-like intervention as capable of falling within Article 3,³ while also developing limiting principles that preserve ordinary navigation, reference, and discovery online. In particular, the new public criterion and,⁴ for links to unlawful content, a knowledge-based approach⁵ mean that routine links to lawfully available material usually remain untouched, whereas links operating as intentional gateways to infringement may be caught.⁶ The better view is that the case law does not criminalise the architecture of the web; it differentiates between ordinary reference and legally significant intervention, to preserve copyright protection and the web's ordinary usability.

2. Assessment

Article 3(1) grant 'authors an exclusive right to authorise or prohibit any communication to the public of their work', including making them available on demand.⁷ That broad wording could cover acts facilitating access, and the CJEU has therefore interpreted communication to the public as an autonomous EU concept involving an act of communication,⁸ a public,⁹ and often a new public not contemplated by the rights holder at the time of the initial authorisation.¹⁰

¹ Aleena Chia, "Everything Is Connected": Networked Conspirituality in New Age Media' (The 22nd Annual Conference of the Association of Internet Researchers, Virtual Event, October 2021) 7.

² Directive 2001/29/EC (Information Society Directive), art 3.

³ Case C-466/12 *Svensson v. Retriever Sverige* EU:C:2014:76 (*Svensson*), [18]–[20] and [24]–[28]; Case C-160/15 *GS Media v. Sanoma* EU:C:2016:644 (*GS Media*), [47]–[53]; Case C-527/15 *Brein v. Wullems* EU:C:2017:300 (*Filmspelers*), [45]–[51]; Case C-610/15 *Brein v. Ziggo and XS4ALL* EU:C:2017:456 (*Ziggo*), [45]–[46]; Case C-392/19 *VG Bild-Kunst v. Stiftung Preußischer Kulturbesitz* EU:C:2021:181 (*VG Bild-Kunst*), [52]–[54] and [61]–[62].

⁴ *Svensson* (n 3), [18]–[20] and [24]–[28].

⁵ *GS Media* (n 3), [47]–[53].

⁶ *Filmspelers* (n 3), [36]–[38] and [45]–[51]; *Ziggo* (n 3), [36], [41], and [45]–[46].

⁷ Information Society Directive, art 3(1).

⁸ Case C-306/05 *SGAE v. Rafael Hoteles* EU:C:2006:764, [42]–[43].

⁹ *ibid*, [37]–[39].

¹⁰ *ibid*, [40].

This framework matters because it explains why hyperlinking cases do not turn on the mechanical fact of linking alone, but on whether the linker materially extends access beyond what the right holder already accepted. *Svensson* is central here. Although the Court accepted that clickable links can amount to an ‘act of communication’ because they make works available,¹¹ it held that links to content freely accessible online with the rights holder’s consent do not infringe Article 3(1) where no new public is reached.¹² The public contemplated by the right holder when placing authorised content on an open website is, in principle, all internet users. In that sense, *Svensson* protects the ordinary practice of citing and directing users to authorised material on the open web rather than attacking it. It therefore shows that Article 3 can accommodate hyperlinking without treating every facilitative act as wrongful.

That logic was extended in *BestWater*, where the Court held that framing authorised, freely accessible content did not reach a new public if no different technical means were used.¹³ The difficult development came in *GS Media*, which concerned links to works placed online without the rights holder’s consent.¹⁴ The Court refused both extremes: it did not hold that links can never infringe,¹⁵ but it also avoided strict liability. Instead, liability turns on knowledge. If the linker ‘knew or ought to have known’ that the source was unauthorised, posting the link may constitute a ‘communication to the public’;¹⁶ where linking ‘is carried out for profit’, such knowledge is presumed, though rebuttably.¹⁷ This undoubtedly creates some chilling effect, especially for commercial actors who must assess the legality of sources before posting. Still, calling that a fundamental attack on openness overstates the case. *GS Media* is targeted targets links that channel users to unlawful availability,¹⁸ while links to authorised and freely accessible material remain largely governed by *Svensson*’s no-new-public approach.¹⁹ Openness on the internet has never meant freedom to facilitate infringement without legal consequence, and a knowledge-based standard is narrower than a general prohibition on

¹¹ *Svensson* (n 3), [20].

¹² *ibid*, [24] and [28].

¹³ Case C-348/13 *BestWater v. Mebes & Potsch* EU: C:2014:2315, [19].

¹⁴ *GS Media* (n 3), [25].

¹⁵ *ibid*, [43].

¹⁶ *ibid*, [49].

¹⁷ *ibid*, [51].

¹⁸ *ibid*, [49].

¹⁹ *Svensson* (n 3), [24] and [28].

linking. It is therefore more accurate to describe GS Media as drawing a fault line between innocent reference and blameworthy facilitation.

The same pattern appears in later cases. *Filmspeler* and *Ziggo* are better understood as decisions about active, organised facilitation of infringement than about ordinary citation-style linking. In *Filmspeler*, the defendant sold a multimedia player configured to reach unauthorised streams;²⁰ in *Ziggo*, the operators indexed and organised access to infringing files on a sharing platform.²¹ In each case the Court emphasised intervention that made infringement conveniently accessible on a large scale and with clear awareness of the unlawful nature of the material. Those rulings therefore do not map neatly onto a normal user posting a link on a blog, social-media page, or article. They instead show that Article 3 can catch intermediaries whose business model is built around making unlawful content easy to find and consume. Seen that way, the case law narrows openness only at the point where linking becomes a commercial architecture for piracy, not where it performs its ordinary informational function. This distinction is important, because it confines the heaviest copyright consequences to actors who systematically organise unlawful access for others.

A more serious limit arises where rights holders use technological restrictions. In *VG Bild-Kunst*, the Court held that framing may amount to ‘communication to the public’ when the rights holder has required effective technological measures against framing and those measures are bypassed or disregarded.²² That rule matters because it lets rights holders define the conditions on which works are available online and gives legal significance to whether access is offered on the open web or only within technically controlled boundaries. One may therefore argue that the judgment encourages a more permissioned and segmented internet. Even so, it does not show that openness is fundamentally undermined. The Court expressly approached the issue through the balance, under the EU Charter, between ‘freedom of expression and information’ and ‘intellectual property’.²³ Its reasoning implies that where a rights holder has chosen unrestricted open access, ordinary hyperlinking and framing should generally remain

²⁰ *Filmspeler* (n 3), [53].

²¹ *Ziggo* (n 3), [48].

²² *VG Bild-Kunst* (n 3), [55].

²³ *ibid*, [54].

free;²⁴ only where the right holder has preserved a controlled audience through effective measures does circumvention trigger Article 3.²⁵ The result is a conditional rather than absolute model of openness, but it still leaves substantial room for ordinary linking practices and for the circulation of lawfully available information across the web.

The strongest criticism of the CJEU's approach is therefore uncertainty, not structural incompatibility. *GS Media*'s for-profit presumption is not always easy to apply,²⁶ and the new public criterion has attracted criticism for doctrinal complexity.²⁷ Those features may encourage cautious linking, over-removal, or self-censorship, particularly in journalism and smaller online publishing. Even so, the overall trajectory of the case law is better described as an imperfect attempt to reconcile two legitimate objectives: protecting the Article 3(1) making-available right and preserving the ordinary function of hyperlinks as references to lawfully available information.²⁸ The internet's core openness—permissionless linking to authorised, freely accessible content—largely survives under *Svensson* and *BestWater*.²⁹ Restrictions arise mainly where linking routes users to unauthorised content with the requisite knowledge,³⁰ forms part of a commercial model of infringement,³¹ or defeats effective technical restrictions imposed by the rights holder.³² That is a meaningful qualification of openness, and one capable of generating cost and uncertainty, but not its fundamental destruction. On balance, the proposition is too absolute: the jurisprudence constrains some harmful linking practices, yet it stops short of disabling the basic linking culture on which the open internet depends.

3. Conclusion

In conclusion, bringing some hyperlinks within Article 3 of the Information Society Directive does not fundamentally undermine the openness of the internet. The CJEU's case law leaves

²⁴ *ibid*, [37].

²⁵ *ibid*, [42]–[43] and [48]; Information Society Directive, art 3.

²⁶ *GS Media* (n 3), [51].

²⁷ Stavroula Karapapa, 'The Requirement for a "New Public" in EU Copyright Law' (2017) 42 *European Law Review* 63, 76–77.

²⁸ Information Society Directive, art 3(1).

²⁹ *Svensson* (n 3), [26]–[28]; *BestWater* (n 13), [14]–[19].

³⁰ *GS Media* (n 3), [43] and [49]–[51].

³¹ *Filmspeler* (n 3), [41]–[42], [45], and [53]; *Ziggo* (n 3), [36]–[39] and [42]–[43].

³² *VG Bild-Kunst* (n3), [38]–[43] and [46].

ordinary linking to authorised, freely accessible material largely intact, while imposing liability chiefly where links knowingly facilitate infringement, support commercial piracy, or circumvent effective technical restrictions. Although the jurisprudence introduces uncertainty and may chill some online speech, it remains a qualified limitation rather than a wholesale attack on openness. The proposition is therefore overstated in both doctrinal and practical terms.